

How Procedural Shortcuts and Revenue Incentives Undermine Justice

A Story of Harm Created by a System Built to Prevent It

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The Department of Justice defines its mission as upholding the rule of law, keeping the country safe, and protecting civil rights. Its core values—Independence and Impartiality, Honesty and Integrity, Respect and Excellence—are meant to reflect the founding ideal Thomas Jefferson articulated: that the most sacred duty of government is to “do equal and impartial justice to all its citizens.”

Yet try as I might to see the justice system as it intends to be, I cannot see impartial justice in practice. Before explaining why, it’s worth grounding the word itself.

Justice means:

1. The quality of being just; fairness.
2. The principle of moral rightness; decency.
3. Conformity to moral rightness in action or attitude.

If these are our guiding principles, we should have tools to measure how well we live up to them. My hypothesis is simple: **when justice becomes a hybrid of intention and institutional survival, survival wins.**

A recent experience made this painfully clear.

A close friend of mine—someone with serious medical issues and almost no support system—asked to stay with me to escape a bad situation at home. I agreed without hesitation. One night, in a state of drunken confusion, she called the police and reported domestic abuse. When officers interviewed her, she repeatedly said nothing had happened. Only after persistent prompting did she echo the allegations needed to justify charges.

Once sober, she tried to correct the record. She obtained notes from the hospital, her therapist, and her fiancée. She contacted the court. She attempted to speak with the District Attorney. She even arranged transportation to explain the situation in person. She has consistently stated she is not afraid of me and never sought protection from me.

But none of that mattered. The system did not believe her.

Instead, it issued a separation order that cut her off from the only stable support she has. And as her health has worsened, the court has made no effort to check on her safety, her housing, or her basic needs. The order remains in place, even as she deteriorates alone.

The system claims to protect her. The lived reality is the opposite.

This disconnect is not accidental. **It is structural.**

1. Revenue Over Safety

At every stage, the court showed more urgency in determining whether *I* could pay fines, fees, and assessments than in evaluating *her* well-documented medical and psychological vulnerability. The financial screening was immediate, thorough, and repeated. The safety review—the supposed purpose of the process—was cursory at best.

This is not unique. Scholars have long documented how modern courts rely on fines and fees as a revenue stream. In *The Punishment Bureaucracy* (Harvard Law Review, 2020), Issa Kohler-Hausmann describes how misdemeanor systems prioritize administrative throughput and financial extraction over individualized justice. My experience aligns with that research: the machinery moved quickly when money was involved, and slowly—or not at all—when human well-being was at stake.

2. Restricted Access to Counsel

When told to obtain private counsel, the court handed me a list of “available attorneys.” That list excluded multiple local attorneys who regularly take cases in this jurisdiction. This was not a clerical oversight; it was a choice.

If the court is willing to bend rules in small ways—such as selectively presenting legal resources—it raises a larger question: **where else are rules bent, and in whose favor?** A system that manipulates access to counsel cannot credibly claim neutrality.

3. Silencing the Protected Party

Despite her repeated attempts to correct the record, the system has no meaningful mechanism to incorporate her statements once the order is in place. The very person the order is supposed to protect becomes a procedural inconvenience.

A 2022 article in *Violence Against Women* notes that protective-order regimes often “silence the protected party when their perspective diverges from the state’s prosecutorial interests.” Once the machinery starts moving, the human beings involved become secondary.

4. Intent vs. Outcome

Courts often defend their actions by pointing to their intentions: “We are protecting victims.” But intention is irrelevant when the outcome is demonstrably harmful. She is now more isolated, more distressed, and more medically vulnerable because of the court’s actions. The system’s self-image does not match its real-world impact.

5. Human Cost as Collateral

The protected party is sick. She is alone. She is suffering. And the system that claims to protect her has made her life materially worse. This is not justice. It is bureaucracy masquerading as safety.

If a system causes harm while claiming to prevent it, we have a responsibility to say so publicly.

Conclusion: We Need a System That Sees People, Not Paperwork

This is not an argument against restraining orders. It is an argument against a process that prioritizes revenue, procedure, and liability protection over the actual well-being of the people involved.

A justice system that cannot distinguish between a genuine threat and a medical crisis is not protecting anyone. It is simply processing them.

Until courts are required to consider medical evidence, mental-health context, and the stated wishes of the protected party—and until financial incentives are removed from misdemeanor processing—cases like this will continue. And real people will continue to suffer.

References

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